

Affidavits, filed for the purpose of proving the service of a Subpœna upon any Defendant, are to state when, where and how, such Subpœna was served, and by whom such service was effected.

1850.
XXIII.
Form of Affidavit.

The Plaintiff, having duly caused an appearance to be entered for any Defendant, is entitled as against the same Defendant to the costs of and incident to entering such appearance, whatever may be the event of the suit; and such costs are to be added to any cost which the Plaintiff may be entitled to receive from such Defendant, or set off against any costs which he may be ordered to pay to such Defendant; but payment thereof is not to be otherwise enforced, without the leave of the Court.

Order as to costs in such cases.

A Defendant, notwithstanding an appearance may have been entered for him by the Plaintiff, may afterwards enter an appearance for himself in the ordinary way, but such appearance by such Defendant is not to affect any proceeding duly taken, or any right acquired by the Plaintiff under or after the appearance entered by him, or to prejudice the Plaintiff's right to be allowed the costs of the first appearance.

A Plaintiff may afterwards enter his own appearance.

In cases where the Defendant is out of the jurisdiction, and the Plaintiff cannot discover his residence, under some special circumstance, proceedings may be had by means of advertising, under the following Order :

In case it shall appear to the Court by sufficient evidence that any Defendant, against whom a Subpœna to appear and answer, or to answer a Bill, has issued, has been within the jurisdiction of the Court at some time, not more than two years before the Subpœna was issued, and that such Defendant is *out of the jurisdiction of the Court*, or that upon inquiry at his usual place of abode (if he shall have had any) or at any other place or places where, at the time the Subpœna was issued, he might probably have been met with, he could not be found so as to be served with Process, and that in either case there is just ground to believe that such Defendant is gone out of the *jurisdiction*, or otherwise absconded, to avoid being served with Process, then and in such case the Court may order that such Defendant do appear at a certain day, to be named in the Order; and a copy of such Order, together with a notice, to the effect set forth in *Schedule C. appended to these Orders*, may, within fourteen days after such Order shall be made, be inserted in the *Canada Gazette*, and be otherwise published as the Court shall direct; and in case the Defendant shall not appear within the time

Absconding Defendants.

1850.
XXIV.